

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CLCL064679: VELOCITY INVESTMENTS LLC vs MIKE MASAK

08/14/2026 in Department 43

Motion to Compel Arbitration and Stay Proceedings

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Motion to Compel Arbitration and Stay Proceedings

Tentative Ruling: Defendant's Motion to Compel Arbitration and Stay Proceedings is DENIED.

A written agreement to submit to arbitration, a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.)□

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and where a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate if it□determines□an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2;□*Gorlach*□v. *Sports Club Co.*□(2012) 209 Cal. App.4th 1497, 1505 [noting that “when presented with a petition to compel arbitration, the trial court's first task is to determine whether the parties have in fact agreed to arbitrate the dispute”].)□

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In deciding a petition to compel arbitration, trial courts must first decide whether an enforceable arbitration agreement exists between the parties and then determine the second gateway issue of whether the claims are covered within the scope of the agreement. (*Omar v. Ralphs Grocer Co.* (2004) 118 Cal.App.4th 955, 961.) The initial burden is on the party petitioning to compel arbitration to prove the existence of the agreement by a preponderance of that evidence. (*Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.)

Once petitioners allege that an arbitration agreement exists, the burden shifts to respondents to prove the falsity of the purported agreement, and no evidence or authentication is required to find the arbitration agreement exists. (*Condee v. Longwood Mgt. Corp.* (2001) 88 Cal.App.4th 215, 219.)

Petitioner here has submitted no admissible evidence of a valid arbitration agreement. Attached to the motion is what appears to be a screenshot of a webpage for a company named “Lending Club.” The webpage states at the top, “Borrower Agreement,” the “Last updated February 18, 2026.” A portion of the webpage discussing arbitration is highlighted.

There is no foundation establishing the admissibility of this document. Notwithstanding the fact that this document was apparently edited in February 2026, and the complaint alleges a debt that was charged off in 2023, there is no evidence to connect this agreement to the claims underlying this lawsuit. There is nothing signed by the parties. No declaration containing admissible testimony regarding an agreement was filed. Defendant has not presented any evidence that an enforceable arbitration agreement exists between the parties. The Court does not need to go any further in its analysis. The motion is denied.